

ExerciseDB End User License Agreement

Version: 2026.1

Last Updated: May 14, 2026

Effective Date: May 14, 2026

This End User License Agreement (the "Agreement") is entered into by and between DevWorx Consulting LLC ("Vendor") and the individual or legal entity that purchases, downloads, accesses, copies, or uses the ExerciseDB exercise data package ("Licensee").

By purchasing, downloading, accessing, copying, installing, or using the Product, Licensee accepts and agrees to be bound by this Agreement. If Licensee does not agree to this Agreement, Licensee may not use the Product.

Definitions

1. "Product" means the ExerciseDB exercise data package, including structured exercise data, JSON files, metadata, related documentation, corrections, and any other files delivered by Vendor with the data package.
2. "Exercise Visuals" means animated GIFs, images, or other visual media provided by Vendor that depict exercises described in the Product.
3. "Derivative Application" means an application, website, digital product, service, internal tool, or other end-user experience developed by Licensee that incorporates or uses the Product in a manner permitted by this Agreement.
4. "Raw Product Materials" means the Product or Exercise Visuals in their original, substantially complete, extractable, downloadable, or standalone form, including bulk JSON files, database exports, downloadable media collections, or substantially similar compilations.

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14. Licensee may not use the Product or Exercise Visuals to create, publish, sell, license, or operate a standalone exercise database, exercise media library, data marketplace listing, API, downloadable dataset, template library, or product that is substantially similar to or competitive with the Product.

15. Licensee may not reverse engineer, decompile, disassemble, scrape, harvest, or attempt to reconstruct any non-public portion of the Product or Exercise Visuals except to the extent such restriction is prohibited by applicable law.

16. Licensee may not use the Product or Exercise Visuals in violation of applicable law, regulation, platform policy, third-party rights, or this Agreement.

17. Licensee may not use Vendor's name, logos, trademarks, trade names, or branding in a way that implies endorsement, sponsorship, certification, partnership, or affiliation without Vendor's prior written consent. Licensee may make a truthful factual statement that its Derivative Application uses licensed ExerciseDB data.

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18. Licensee may not use the Product or Exercise Visuals to train, fine-tune, validate, benchmark, evaluate, enrich, or otherwise develop artificial intelligence, machine learning, computer vision, generative AI, large language model, recommendation, classification, or similar models or systems without Vendor's prior written consent.

19. Licensee may not include the Product or Exercise Visuals in any dataset, corpus, embedding store, vector database, synthetic data workflow, model training pipeline, model evaluation set, or other machine-readable collection intended for AI or machine learning use without Vendor's prior written consent.

Ownership

20. Vendor retains all right, title, copyright, intellectual property rights, proprietary rights, and distribution rights in and to the Product and Exercise Visuals. This Agreement grants a license only and does not transfer ownership.

21. Licensee retains ownership of its Derivative Applications, excluding the Product, Exercise Visuals, and any Vendor intellectual property incorporated in or used by those Derivative Applications.

22. Licensee grants Vendor no ownership rights in Licensee's independent code, branding,

user interface, customer data, or business materials.

License Fee

23. The purchase price paid by Licensee constitutes the license fee for the Product unless a separate written agreement states otherwise. Exercise Visuals are provided as an accompanying resource at no additional charge.

24. All fees are non-refundable except as expressly stated in writing by Vendor or required by applicable law.

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25. The license applies to the Product version delivered to Licensee at the time of purchase or download. Vendor has no obligation to provide updates, corrections, replacements, enhancements, maintenance, hosting, implementation assistance, or user support unless stated in a separate written agreement.

26. If Vendor voluntarily provides an update, correction, replacement, or supplemental file, that material is part of the Product and is governed by this Agreement unless Vendor states otherwise in writing.

Fitness, Health, and Medical Disclaimer

27. The Product and Exercise Visuals are provided for informational, educational, and software-development purposes only. They are not medical advice, healthcare advice, physical therapy advice, rehabilitation guidance, personal training services, exercise prescription, diagnosis, treatment, or a substitute for professional judgment.

28. Vendor does not represent or warrant that any exercise, movement, instruction, classification, progression, regression, substitution, body-part mapping, equipment mapping, difficulty level, category, visual, or other Product content is safe, appropriate, effective, complete, accurate, or suitable for any person, condition, goal, age, fitness level, injury, disability, medical history, or use case.

29. Licensee is solely responsible for reviewing, testing, validating, modifying, contextualizing, and supplementing the Product and Exercise Visuals before using them in any Derivative Application, especially where end users may rely on the Derivative Application for fitness, health, wellness, coaching, education, or exercise guidance.

30. Licensee is solely responsible for all warnings, disclaimers, screening, user instructions, professional review, safety notices, age restrictions, emergency notices, informed consent, and other protections in Licensee's Derivative Applications.

31. Licensee may not state or imply that Vendor has reviewed, approved, certified, endorsed, medically validated, clinically validated, or safety-tested Licensee's Derivative Application.

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32. Vendor does not collect, process, host, control, or determine the use of Licensee's end-user data through Licensee's Derivative Applications unless Vendor separately agrees in writing.

33. Licensee is solely responsible for its own privacy notices, consent flows, data security, data retention, data deletion, consumer requests, health-data handling, analytics, advertising practices, app-store disclosures, and compliance with all laws and regulations applicable to Licensee's Derivative Applications.

34. Without limiting the foregoing, Licensee is solely responsible for determining whether laws, regulations, or platform requirements relating to privacy, consumer protection, health information, children's privacy, accessibility, advertising, endorsements, subscriptions, biometric data, sensitive personal information, artificial intelligence, or medical devices apply to Licensee's Derivative Applications.

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35. To the maximum extent permitted by applicable law, the Product and Exercise Visuals are provided "as is," "as available," and with all faults. Vendor disclaims all warranties, whether express, implied, statutory, or otherwise, including implied warranties of merchantability, fitness for a particular purpose, title, non-infringement, accuracy, completeness, reliability, availability, and error-free operation.

36. Vendor does not warrant that the Product or Exercise Visuals will meet Licensee's requirements; that any defects, inaccuracies, omissions, or inconsistencies will be corrected; or that the Product or Exercise Visuals will be compatible with Licensee's systems, applications, or intended use.

Warranties and Representations

37. Vendor represents that, to Vendor's knowledge, Vendor is the owner or authorized licensor of the Product and Exercise Visuals and has the right to grant the license stated in this Agreement.

38. Licensee represents that it has the legal authority to enter into this Agreement and that its use of the Product and Exercise Visuals will comply with this Agreement and applicable law.

Limitation of Liability

39. To the maximum extent permitted by applicable law, Vendor's total cumulative liability arising out of or relating to this Agreement, the Product, or the Exercise Visuals will not exceed the amount actually paid by Licensee to Vendor for the Product.

40. To the maximum extent permitted by applicable law, Vendor will not be liable for any indirect, incidental, special, consequential, exemplary, punitive, or enhanced damages; loss of profits; loss of revenue; loss of goodwill; business interruption; loss, corruption, or recovery of data; substitute goods or services; or claims by third parties, even if Vendor has been advised of the possibility of such damages.

41. Nothing in this Agreement limits liability to the extent such limitation is prohibited by applicable law.

Indemnification

42. Licensee will defend, indemnify, and hold harmless Vendor and its owners, officers, employees, contractors, agents, successors, and assigns from and against any claims, damages, liabilities, losses, costs, and expenses, including reasonable attorneys' fees, arising out of or relating to Licensee's Derivative Applications; Licensee's use, modification, distribution, display, or commercialization of the Product or Exercise Visuals; Licensee's breach of this Agreement; Licensee's violation of law or third-party rights; Licensee's privacy, security, consumer protection, health, fitness, medical, advertising, or app-store practices; or any claim by Licensee's end users.

Term and Termination

43. This Agreement begins upon Licensee's acceptance and continues perpetually unless terminated as provided in this Agreement.

44. This Agreement terminates automatically if Licensee materially breaches this Agreement. Upon termination, Licensee must immediately stop using the Product and Exercise Visuals, remove them from any Derivative Application to the extent commercially and technically feasible, and destroy all copies in Licensee's possession or control, except archival copies retained solely as required by law.

45. Sections concerning restrictions, AI and machine learning, ownership, fitness and medical disclaimers, privacy and compliance responsibility, warranty disclaimers, limitation of liability, indemnification, termination, governing law, notices, and miscellaneous terms survive termination.

Force Majeure

46. Vendor will not be liable for delay or failure to perform resulting from events beyond Vendor's reasonable control, including natural disasters, acts of war, terrorism, labor disputes, supply-chain disruptions, internet or hosting failures, platform outages, governmental action, power failures, or other events of similar nature.

Governing Law and Venue

47. This Agreement is governed by and construed in accordance with the laws of the State of Texas, without regard to conflict-of-law principles.

48. The parties submit to the exclusive jurisdiction and venue of the state and federal courts located in Texas for any dispute arising out of or relating to this Agreement, the Product, or the Exercise Visuals, except that Vendor may seek injunctive or equitable relief in any court of competent jurisdiction to protect its intellectual property or confidential information.

Notices

49. Notices to Vendor must be sent by email to support@devworxconsulting.com unless Vendor provides a different notice address in writing.

50. Notices to Licensee may be sent to the email address or account contact information provided by Licensee at purchase or download.

Miscellaneous

51. This Agreement may be modified only in a writing signed by Vendor and Licensee, except that Vendor may provide updated license terms for future purchases, downloads, updates, or versions of the Product.

52. Licensee may not assign or transfer this Agreement without Vendor's prior written consent. Any attempted assignment in violation of this section is void. Vendor may assign this Agreement in connection with a merger, acquisition, corporate reorganization, sale of assets, or transfer of the Product.

53. Nothing in this Agreement creates an agency, partnership, joint venture, employment, franchise, fiduciary, or representative relationship between the parties.

54. If any provision of this Agreement is held invalid, illegal, or unenforceable, the remaining provisions will remain in full force and effect, and the invalid, illegal, or unenforceable provision will be enforced to the maximum extent permitted by law.

55. Vendor's failure to enforce any provision of this Agreement is not a waiver of Vendor's right to enforce that provision or any other provision later.

56. Headings are for convenience only and do not affect interpretation.

57. This Agreement constitutes the entire agreement between Vendor and Licensee regarding the Product and Exercise Visuals and supersedes all prior or contemporaneous understandings, representations, communications, or agreements regarding the same subject matter.

DevWorx Consulting LLC

Email: support@devworxconsulting.com

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A handwritten signature in black ink, consisting of a stylized 'S' or 'Z' shape with a long horizontal stroke extending to the right.

05/14/2026